
Economic Impact Evidence Brief

Supporting the co-founder petitioner's EB-2 NIW petition · July 2026

Framing. Prepared by the founders as source material for immigration counsel. This document is not legal advice and draws no legal conclusions; it organizes the factual, economic, and documentary record so qualified counsel can assess and argue it under the applicable standard (*Matter of Dhanasar*). Every market figure is sourced (CDC, USDA ERS, AHRQ, peer-reviewed literature; full citations in the Market Research Dossier). Projections are labeled as projections. Nothing herein claims users, partners, revenue, or health outcomes that do not exist.

1 The proposed endeavor — specific and defined

To build and scale **Forkcast**, a U.S. nutrition decision-support and data-verification system for restaurant meals, with three components:

1. **A consumer product** that scores restaurant dishes against an individual's clinically-derived targets *before* ordering, then closes the loop: order, confirmation, evidence-carrying meal log, and adaptive recalibration from the user's own measured energy balance.
2. **A small-business data program** that digitizes, estimates, and owner-verifies nutrition data for **independent restaurants** — the majority of U.S. restaurants, which federal menu-labeling rules (21 CFR 101.11; chains of 20+ locations only) do not reach — under a documented protocol with versioned public corrections.
3. **A measurement framework**: six pilot metrics pre-registered publicly *before* any measurement, so national-scale claims are earned from reproducible evidence, not asserted.

The endeavor is **operational today**: a complete working product with a dated 2026 development record, three-tier data provenance including live-captured restaurant-published nutrition (Sweetgreen; The Halal Guys), a restaurant-side order terminal with versioned corrections, and role-based accounts for diners and restaurants.

2 The national problem, in economic terms

Economic fact	Figure	Source
Annual U.S. cost of diet-related disease	~\$334B/yr	CDC; AHRQ MEPS
— of which obesity-attributable medical cost	~\$173B/yr (2019\$)	CDC
U.S. adults with obesity / overweight	40.3% + 31.7% ≈ 72%	CDC NCHS, 2024
Food spending away from home	58.5% (record; \$4,485/capita)	USDA ERS, 2024
Daily calories from food away from home	~1/3	USDA ERS / NHANES
Sodium density, restaurant vs. home food	2,151 vs 1,369 mg/1,000 kcal	USDA ERS EIB-105
Effect of federal menu calorie labels	~22–25 kcal/order; often null	Peer-reviewed literature
Consumers underestimating restaurant calories	2 in 3; ~25% by 500+ kcal	USDA/NHANES 2024

The economic syllogism: more than half of U.S. food spending flows through a channel that measurably worsens diets, largely escapes the federal transparency requirement, and has resisted the one intervention tried at scale (passive labels). The cost of that failure — ~\$334B a year — is national by any definition. This endeavor operates *upstream of the order*, covers the *unregulated independent majority*, and *measures its own effect* — the three points where existing policy and products do not.

3 Channels of economic impact

3.1 Public-health cost reduction (primary channel, honestly framed)

The mechanism targets the decision moment where labels fail: personalized, explained scoring before ordering; allergy and condition advisories; and a confirmed-order log that makes dietary change measurable per user. **No health-outcome effect is claimed today.** The pre-registered *diet-quality delta* metric (change in sodium and calories per restaurant meal vs. each user's own baseline) is designed to quantify the effect. Context for scale: labeling policy's ~24 kcal/transaction justified federal rulemaking; a decision-support tool need only exceed that low bar, per user, to outperform the status-quo intervention — and the framework will show whether it does.

3.2 Small-business competitiveness (independent restaurants)

- **Free digitization and verification tools** (order terminal, allergy flags, versioned menu corrections) deliver capabilities chains buy from enterprise vendors — at no cost to the independent majority.
- **A cheaper demand channel:** 6% commission only on orders the platform originates, vs. the 15–30% independents pay delivery marketplaces (the market's own pickup benchmark is 6%) — direct margin relief.
- **Portable reputation infrastructure:** verified nutrition data and public correction history for small businesses that otherwise have none.
- **Priced, replicable onboarding:** the pilot measures the cost of digitizing one independent restaurant — a pre-registered metric.

3.3 Direct economic activity (projections, labeled)

From the planning model (base case, July 2026): revenue ~\$0.2M (Y1) → ~\$37M ARR (Y5); employment growing from ~5–6 to an estimated ~45–60 U.S. jobs by Year 5 (engineering, dietetics, operations, restaurant partnerships), plus indirect activity at partner restaurants; payroll and corporate tax base, and state meals-tax

collections on platform-originated orders (the product computes Massachusetts meals tax on every order today). The protocol is market-agnostic by design — Boston is the first instance, not the boundary.

3.4 Non-dilutive R&D alignment

The estimation-engine research agenda maps to standing federal SBIR priorities (NIH/NIDDK metabolic-disease prevention; USDA-NIFA food science & nutrition; NSF). Submissions are planned, not claimed.

3.5 Knowledge and infrastructure spillovers

A publishable menu-collection protocol; an order-ground-truth validation dataset for nutrition-estimation accuracy that retrospective logging products structurally cannot build; and a transferable correction-governance pattern (versioned, timestamped, public) for consumer-data integrity in AI products.

4 Factual mapping to the Dhanasar framework

Counsel determines legal sufficiency; this table organizes facts under each prong.

Prong	Factual support assembled
1. Substantial merit & national importance	Sourced economics of §2; the federal transparency gap for independent restaurants; documented failure of passive labeling; impact channels of §3; a protocol designed for cross-market U.S. scale rather than one locality.
2. Well positioned to advance the endeavor	Petitioner (co-founder; credentials in the petition record); hands-on builder of a complete working product (dated 2026 record); demonstrated data capability (live published-nutrition integrations, three-tier provenance, adaptive energy-balance calibration); documented methods and verified-figure business plan; pilot designed and publicly pre-registered; funding strategy mapped (pre-seed + SBIR).
3. Balance favoring waiver <i>(as argued by counsel)</i>	Founder-created enterprise, co-founded by the petitioner (job-creating); work product — protocol, dataset, correction governance — is infrastructure others can build on; urgency: diet-disease costs compound annually while the independent-restaurant gap persists.

5 Evidence inventory

Exists today (dated, verifiable)

Working end-to-end product with 45+ dated commits (2026) and a public demo deployment · three-tier provenance catalog with live-captured published nutrition (retrieval dates and non-affiliation statements on each listing) · public pre-registered pilot metrics and source ledger · documented methods (menu-collection protocol; system architecture) · business plan v2 with all 25 reused market figures verified against the sourced dossier; financial model v2 · competitive scan with dated live captures · founders' delivery-cost research validated with restaurant owners · product-embedded integrity system (prototype stamps, simulation labels, confidence tiers, no-unrecorded-claims commitment).

To be generated by the pilot (the strengthening path)

Signed verification letters from 3–5 Boston independent restaurants with their correction logs · measured pilot metrics against the pre-registered definitions · expert letters (registered dietitian; health economist; independent-restaurant operator or association; public-health academic) · SBIR submission and, if awarded, the award · the order-ground-truth validation dataset and any resulting write-up · pilot-grounded press coverage.

6 Stated weaknesses (before anyone else states them)

- **No measured outcomes yet** — mitigated by pre-registration: definitions were published before data.
- **Lean founding-team execution risk** — mitigated by the shipped record of the two-person founding team; hiring is specified and funded.
- **Projections are projections** — every forward number is labeled; the base case was deliberately *reduced* for defensibility (\$58M → \$37M), itself evidence of conservatism.
- **Catalog's real restaurants are not partners** — stated on every listing; converting them is the pilot's first milestone, with letters as the artifact.

Companions: Business Plan v2 · Financial Model v2 · Market Research Dossier (citations for every figure above) · Menu Collection Protocol · Competitive Scan (July 2026). To be reviewed, supplemented, and framed by qualified immigration counsel before any filing.